

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Filed: _____

-----X

Index No.:

Erick Mendez,

Plaintiff,

Plaintiff designates
Bronx County as the
place of trial

- against-

The City Of New York, Eric Dipaolo, Shield No. 16957, Ryan
Lawrence, Shield No. 11278, John Does #1-3,
Defendants.

The basis of venue is:
The situs of occurrence

-----X

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, to, if the complaint is not served with the summons, to serve a notice of appearance, on the plaintiff's attorneys within twenty (20) days after the service of this summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Dated: New York, New York
July 15, 2020

The nature of this action is for violation of Plaintiff's Civil and Constitutional Rights.
The relief sought is monetary damages.

LIAKAS LAW, P.C.



BY: Nicholas Mindicino, ESQ.

Attorney for Plaintiff

65 Broadway, 13th Floor
New York, N.Y. 10006
(212) 937-7765

If you fail to respond, judgment will be entered against you by default, with interest from date of incident.

Defendants:

City of New York
Office of the Corporation Counsel
100 Church Street
New York, New York 10007

**Officers Eric Dipaolo, Shield No. 16957 and Ryan Lawrence,
Shield No. 11278**
NYPD 52nd Precinct
3016 Webster Ave,
The Bronx, NY 10467

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
Erick Mendez,

Plaintiff,

- against-

VERIFIED COMPLAINT

The City Of New York, Eric Dipaolo, Shield No. 16957, Ryan
Lawrence, Shield No. 11278, John Does #1-3,
Defendants.-----X
Plaintiff, by his attorneys, LIAKAS LAW, P.C., as and for this Complaint, alleges as follows:**Preliminary Statement**

1. This is a civil rights action in which plaintiff seeks relief through the laws of the United States and the State of New York for the violation of his right to be Free of Unreasonable Search and Seizure under the United States and the New York State Constitutions.
2. The claim arises from an incident which occurred from June 30, 2019 to July 1, 2019, in which Officers of the New York City Police Department ("NYPD"), acting under color of state law, intentionally and willfully subjected plaintiff to false arrest and malicious prosecution.
3. Plaintiff seeks monetary damages (special, compensatory, and punitive) against defendants, as well as an award of costs and attorneys' fees, and such other and further relief as the Court deems just and proper

JURISDICTION & VENUE

4. Within 90 days of the incidents alleged in this complaint, Plaintiff served upon Defendant, City of New York, a Notice of Claim setting forth the name and post office address of Plaintiff, the nature of the claim, the time when, the place where and the manner in which the claim arose, and the items of damages or injuries claimed.

5. More than 30 days have elapsed since Plaintiff's Notice of Claim was served on Defendant.
6. Venue is proper in the Supreme Court of the State of New York, Bronx County, because the acts in question occurred in the State of New York, Bronx County, and the City of New York is subject to personal jurisdiction in the Supreme Court of the State of New York, Bronx County.

PARTIES

7. Plaintiff, Erick Mendez, at time of the incident described herein, was a resident of the State of New York, Bronx County.
8. The City of New York (or "the City") is a municipal corporation organized under the laws of the State of New York. At all times relevant hereto, Defendant City, acting through the New York Police Department (or "NYPD"), was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel. In addition, at all relevant times, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.
9. Police Officers Eric Dipaolo, Shield No. 16957, Ryan Lawrence, Shield No. 11278 and John Does #1-3, were at all relevant times police officers of the NYPD, and as such were acting in the capacity of agent, servant and employee of the City of New York. On information and belief, defendants Dipaolo, Lawrence and John Does #1-3 were involved in the illegal arrest and prosecution of plaintiff and/or the use of excessive force against

plaintiff, and/or failed to intervene in the actions of their fellow officers. Defendants Dipaolo, Lawrence and John Does #1-3 are sued in their individual capacities.

10. John Does #1-3 are individual police officers of the NYPD involved in the arrest and prosecution of Plaintiff whose names are not presently in Plaintiff's possession.

FACTUAL HISTORY

11. On June 30, 2019 Plaintiff Erick Mendez was in the vicinity of Devoe Park, located near the intersection of University Avenue and West Fordham Road in Bronx New York.
12. Plaintiff arrived at Devoe Park at approximately 8:00 pm.
13. At approximately 9:00 pm police officers of the NYPD were in the course of arresting another individual in Devoe Park.
14. Police officers used improper force in the arrest of the other individual.
15. Plaintiff attempted to film the officer's arrest of the other individual.
16. Police officers including defendants Dipaolo and/or Lawrence and/or John Doe #1-3 approached plaintiff.
17. One of the officers struck plaintiff in the head/face area.
18. The officers including defendants Dipaolo and/or Lawrence and/or John Doe #1-3, caused plaintiff to fall to the ground.
19. While plaintiff was on the ground defendants Dipaolo and/or Lawrence and/or John Doe #1-3 struck plaintiff about the head and used force on plaintiff's lower body.
20. Plaintiff did not resist the officers.
21. Plaintiff did not pose a risk of physical injury to the officers or others.
22. Following the use of force by the officers against plaintiff, plaintiff was arrested.
23. Plaintiff was brought to the NYPD 52nd Precinct, then to Bronx Central Booking for

arraignment.

24. On July 1, 2020 Plaintiff was arraigned.
25. Plaintiff was charged with various crimes including assault.
26. Plaintiff was released on his own recognizance on July 1, 2020.
27. Plaintiff appeared in court approximately five times in regards to the these charges.
28. All charges against Plaintiff were later dismissed.
29. At all times herein, the defendants lacked probable cause to believe Plaintiff had committed any crime.
30. Defendants Dipaolo and/or Lawrence and/or John Doe #1-3 participated in the prosecution of plaintiff by drafting arrest paperwork, recommending charges be brought against Plaintiff, communicating with members of the District Attorney's office, and/or forwarding the police and arrest paperwork related to plaintiff's arrest to the assigned prosecutor.
31. Defendants Dipaolo and/or Lawrence and/or John Doe #1-3 presented false information to the prosecutor by alleging plaintiff committed various acts which they were aware he had not committed, including allegations that he assaulted and/or attempted to assault police officers.
32. Defendants Dipaolo and/or Lawrence and/or John Doe #1-3 personally participated in the arrest of plaintiff, and the use of force against plaintiff, and/or failed to intervene in the illegal actions of their fellow officers.
33. As a direct and proximate result of the malicious and outrageous conduct of defendants as set forth above, Plaintiff suffered injuries including but not limited to emotional trauma, harm and distress, mental anguish, fear, embarrassment, and humiliation, loss of liberty, loss of property, psychological injury and pain and suffering.

DAMAGES

34. As a direct and proximate result of the acts of defendants, Plaintiff suffered the following injuries and damages:
- a. Violation of his Federal and New York State Constitutional right to Due Process of Law;
 - b. Violation of his Federal and New York State Constitutional right to be free from unreasonable searches and seizures;
 - c. Serious physical injury;
 - d. Pain and suffering;
 - e. Loss of Liberty;
 - f. Economic loss;
 - g. Emotional distress, including fear, embarrassment, depression, and anxiety.

FIRST CAUSE OF ACTION

(False Arrest Under New York State Law)

35. The above paragraphs are here incorporated by reference.
36. Defendants subjected plaintiff to false arrest, false imprisonment, and deprivation of liberty without probable cause.
37. Defendants intended to confine plaintiff and in fact confined him.
38. Plaintiff was conscious of the confinement and did not consent to it.
39. The confinement was not privileged.
40. Plaintiff was damaged by his wrongful imprisonment.

SECOND CAUSE OF ACTION

(Malicious Prosecution Under New York State Law)

41. The above paragraphs are here incorporated by reference.

- 42. Defendants, acting with malice, initiated a prosecution against plaintiff and caused him to be prosecuted.
- 43. Defendants did not have probable cause to initiate this proceeding.
- 44. The criminal proceedings were terminated in plaintiffs' favor.
- 45. As a result of the malicious prosecution implemented by defendants, plaintiff was damaged.

THIRD CAUSE OF ACTION
(Assault – As to Individual Defendants)

- 46. The above paragraphs are here incorporated by reference.
- 47. Defendants made plaintiff fear for his physical well-being and safety and placed him in apprehension of immediate harmful and/or offensive touching.
- 48. Defendants have deprived plaintiff of his civil, constitutional and statutory rights and have conspired to deprive him of such rights and are liable to plaintiff under common law, and the laws and Constitution of New York State.
- 49. Plaintiff was damaged by defendants' assault.

FOURTH CAUSE OF ACTION
(Battery – As to Individual Defendants)

- 50. The above paragraphs are here incorporated by reference.
- 51. Defendants engaged in and subjected plaintiff to immediate harmful and/or offensive touching and battered them.
- 52. Defendants used excessive and unnecessary force with plaintiff.
- 53. Defendants have deprived plaintiff of his civil, constitutional and statutory rights and have conspired to deprive him of such rights and are liable to plaintiff under common law, and the New York State Constitution.
- 54. Plaintiff was damaged by defendants' battery

FIFTH CAUSE OF ACTION

(Respondeat Superior)

55. The above paragraphs are here incorporated by reference.
56. The defendants' tortious acts were undertaken within the scope of their employment by Defendant City of New York and in furtherance of the Defendant City of New York's interest.
57. As a result of defendants' tortious conduct in the course of their employment and in furtherance of the business of Defendant City of New York, Plaintiff was damaged.
58. The City of New York is liable for the tortious acts of its employees by reason of respondeat superior.

SIXTH CAUSE OF ACTION

(42 U.S.C. §1983)

59. The above paragraphs are here incorporated by reference.
60. Defendants have deprived Plaintiff of his civil, constitutional and statutory rights under color of law and have conspired to deprive him of such rights and are liable to Plaintiff under 42 USC § 1983.
61. Defendants' conduct deprived Plaintiff of his right to be free of unreasonable searches and seizures, pursuant to the Fourth and Fourteenth Amendments to the United States Constitution.
62. Defendants' conduct deprived Plaintiff of his right to due process of law, pursuant to the Fourteenth Amendment to the United States Constitution.
63. Defendants falsely arrested plaintiff without probable cause to believe he had committed a crime, in violation of the Fourth and Fourteenth Amendments to the United States Constitution.

64. Defendants maliciously prosecuted plaintiff without probable cause to believe he had committed a crime, in violation of the Fourth and Fourteenth Amendments to the United States Constitution.
65. Defendants created false evidence against Plaintiff, and presented it to prosecutors, thereby denying him his right to a fair trial pursuant to the Sixth and Fourteenth Amendment to the United States Constitution.
66. Defendants used excessive and unnecessary force against Plaintiff.
67. Plaintiff has been damaged as a result of defendants' wrongful acts.

WHEREFORE, Plaintiff respectfully requests judgment against Defendants as follows:

- (A) compensatory damages in an amount to be determined at trial for each of Plaintiff's Causes of Action;
- (B) punitive damages in an amount to be determined at trial;
- (C) an order awarding Plaintiff reasonable attorneys' fees and costs;
- (D) such other further relief as the Court may deem just and proper.

Dated: New York, New York
July 15, 2020

Yours, etc.
LIAKAS LAW, P.C.

By: 

Nicholas Mindicino, ESQ.
Attorneys for Plaintiff
65 Broadway, 13th Floor
New York, New York 10006
(212) 937-7765

STATE OF NEW YORK)
) ss
COUNTY OF NEW YORK)

I, the undersigned, an attorney admitted to practice in the courts of New York State, state under penalty of perjury that I am one of the attorneys for Plaintiff in the within action; I have read the foregoing SUMMONS AND VERIFIED COMPLAINT and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe to be true. The reason this verification is made by me and not by my client, is that my client are not presently in the County where I maintain my offices. The grounds of my belief as to all matters not stated upon my own knowledge are the materials in my file and the investigations conducted by my office.

Dated: New York, New York
July 15, 2020



NICHOLAS MINDICINO, ESQ.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Erick Mendez,

Plaintiff,

- against-

The City Of New York, Eric Dipaolo, Shield No.
16957, Ryan Lawrence, Shield No. 11278, John Does #1-3,

Defendants.

LIAKAS LAW, P.C.
Attorneys for Plaintiff(s)
65 Broadway - 13th Floor
New York, New York 10006
212-937-7765

SUMMONS and VERIFIED COMPLAINT

STATE OF NEW YORK, COUNTY OF NEW YORK, SS:

Nicholas Mindicino, the undersigned, an attorney admitted to practice in the Courts of New York State, affirms the following:

I further certify that my signature below acts as a "certification" for the documents attached hereto, in compliance with section 130-1.1-a of the Rules of the Chief Administrator (22 NYCRR).

Dated: New York, New York
July 15, 2020



Nicholas Mindicino, ESQ.

PLEASE TAKE NOTICE

- () that the within is a (certified) true copy of a Notice of _____ entered in the Office of the clerk of the within Entry named Court on _____
- () that an Order of which the within is a true copy will be presented for Notice of settlement to the Hon. _____ one of the Judges of the Settlement within named Court, on _____, at _____
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